

		<i>v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The parties' evidentiary objections are OVERRULED. Defendants shall give notice.
7	Fleck v. AutoNation, Inc.	O/C
8	Geraci v. Geraci LLP	Before the Court are the following two motions: (1) motion to disqualify attorney of record filed by plaintiffs Anthony Geraci and Geraci Legal Corporation (collectively, Plaintiffs); and (2) motion to compel arbitration filed by defendants Geraci LLP; Dagbandan Service APC; KKC Legal APC; Wimeo APC; Lightning Docs LLC; Nema Dagbandan; Natalie Dagbandan; Melissa Martorella; Kevin Kim; Siuen Kim; Dennis Baranowski; and Cameo Baranowski (collectively, Defendants). For the reasons set forth below, Motion 1 is DENIED and Motion 2 is GRANTED. <u>Motion No. 1: Motion to Disqualify Attorney</u> Plaintiffs move for an order disqualifying Raines Feldman Littrell LLP (Defense Counsel) as counsel of record for Defendants. Plaintiffs contend Defense Counsel's concurrent representation of Geraci LLP and Lightning Docs LLC, as well as the individual defendants and their alter ego entities, creates an irreconcilable conflict of interest necessitating Defense Counsel's disqualification. (See Cal. Rules of Prof. Conduct, Rule 1.7.) Plaintiffs contend a conflict exists because Defense Counsel simultaneously represents the very entities harmed—Geraci LLP and Lightning Docs LLC—alongside the insiders of those entities accused of "looting and mismanaging them." "[W]here the same attorney simultaneously represents potentially conflicting parties, the primary interest at stake is the attorney's duty of loyalty. (Citation.)...When the duty of loyalty applies, courts have found the conflict to require "<i>per se</i>, or automatic disqualification, in all but a few instances." (Citation.) "The strict proscription against dual representation of clients with adverse interests thus derives from a concern with protecting the integrity of the attorney-client relationship rather than from concerns with the risk of specific acts of disloyalty or diminution of the quality of the attorney's representation." (Citation.) ... [¶] A potential conflict, however, does not warrant automatic disqualification of joint counsel. (Citations.)" (<i>Gong v. RFG Oil, Inc.</i> (2008) 166 Cal.App.4th 209, 214-215.) Here, Plaintiffs have not shown that any actual conflict exists. Plaintiffs argue summarily that the complaint alleges insider misconduct and looting and mismanagement of Geraci LLP and